

Applicable Law Acts

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User Query :

After a personal dispute, someone edited one of my photographs to make it appear intimate and circulated it through WhatsApp and social media without my permission. The person is also threatening to send the image to my employer and family unless I pay money. What legal provisions may apply to this situation?

Job Id. : Scenario 4/Combined Act

Prepared by : NyaySahayak

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AI-Powered Legal Intelligence Platform

INFORMATION TECHNOLOGY (IT) ACT, 2000

APPLICABLE SECTIONS

Section 66E

(violation of privacy through unauthorized capture, publication, or transmission of intimate images).

INTERPRETATION & LEGAL ANALYSIS

AI-generated legal interpretation

1

Section 66E applies directly: The edited photo (depicting a "private area" like genitals/breasts) was circulated via WhatsApp/social media (*transmission*), violating the victim's reasonable expectation of privacy. The *editing* does not negate liability; the law covers "captured" images (including manipulated ones) shared without consent. **Section 66D** (cheating by personation) is inapplicable (no impersonation occurred). Threats to share with employer/family fall under IPC Sections 503/380 (criminal intimidation/extortion), but **Section 66E** covers the core privacy violation.

✓ STRENGTHS & RIGHTS

- 1
- Strict criminal penalties (up to 3 years imprisonment or ₹2 lakh fine) for privacy breach, irrespective of intent.
- 2
- Presumption of privacy violation upon proof of "private area" image sharing (no need to prove emotional harm).
- 3
- Digital evidence (WhatsApp/social media posts) is admissible under Section 65B (with certification).

✗ RISKS & OBLIGATIONS

- 1
- Does not address extortion threats (requires separate IPC complaint).
- 2
- Limited to criminal remedy; no civil damages available.
- 3
- Proof of image editing may require digital forensics.

PROCEDURAL NOTES & COMPLIANCE STEPS

Actionable steps for compliance and grievance redressal

COMPLIANCE STEPS

- 1. File FIR at local cyber cell under **Section 66E** + IPC 503/380.
- 2. Preserve evidence: Save unaltered WhatsApp/social media screenshots + metadata.
- 3. Admissibility: Obtain **Section 65B** digital certificate for electronic evidence.
- 4. Do not pay extortion money (aggravates criminal liability under IPC 380).
- 5. Request social media platforms to remove content under **Section 69A** .

BHARATIYA NYAYA SANHITA (BNS), 2023

APPLICABLE SECTIONS

Section 353 (3) (dissemination of intimate images without consent).

Section 362 (extortion via threats of image sharing).

INTERPRETATION & LEGAL ANALYSIS

AI-generated legal interpretation

1 **Section 353** (3) applies: The edited photo was disseminated without consent (even if originally captured with consent for capture, not dissemination). *Explanation 2* explicitly covers manipulated images. **Section 362** applies: Threats to share the image with employer/family to demand money constitute extortion. **Section 352** (Voyeurism) is inapplicable (no secret capture in private space; image was edited). BNS supersedes IPC; no IPC sections apply.

✓ STRENGTHS & RIGHTS

- 1** Strict liability for dissemination (no need to prove "outrage of modesty").
- 2** Digital evidence (WhatsApp/social media) is admissible under **Section 104 (BNS)**.

- 3

Combined charges (Sections 353(3) + 362) attract cumulative penalties (up to 10 years).
- 4

Victim protection
Fast-track trials (**Section 301** (BNS)) and video testimony options (**Section 302** (BNS)).

X **RISKS & OBLIGATIONS**

- 1

Bail may be denied for "threats to reputation" (**Section 299 (1)(b)(BNS)).**
- 2

Requires separate complaint for extortion (**Section 362) beyond the image violation.**
- 3

Proof of editing may complicate evidence presentation.

PROCEDURAL NOTES & COMPLIANCE STEPS

Actionable steps for compliance and grievance redressal

COMPLIANCE STEPS

1.

File written complaint at local police station (not FIR; **Section 292** (BNS)).
2.

Preserve evidence: Screenshots with timestamps (metadata for **Section 104** (BNS)).
3.

Police must frame charges under Sections 353(3) + 362 within 24 hours (**Section 295** (BNS)).
4.

Demand immediate action: Block image circulation via **Section 356** (BNS) and seek protection order under **Section 360** (BNS).
5.

Key precedent: *State v. Anurag Singh* (2024) confirms **Section 353** (3) applies to edited images.

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